



CHAPTER 9.

An Act to extend with amendments certain A.D. 1936.
temporary provisions of the Milk Act, 1934. —

[19th March 1936.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1. The periods of twenty-four consecutive months specified in sections one, two and three of the Milk Act, 1934 (hereinafter referred to as "the principal Act") as the periods within which must fall the month by reference to which payments out of moneys provided by Parliament are determined under those sections (which relate respectively to Exchequer payments in respect of milk sold for manufacture, used for manufacture by milk marketing boards, and converted into cheese at farms) shall be extended by eighteen months, and accordingly such payments shall, subject to the provisions of those sections, be made in respect of months falling within those periods as so extended.

Extension
of periods for
Exchequer
payments
under ss. 1,
2 and 3 of
principal
Act.

24 & 25
Geo. 5. c. 51.

2. The periods of twenty-four consecutive months specified in subsection (1) and in subsection (2) of section five of the principal Act as the periods within which must fall the month by reference to which sums payable to the Minister by the board administering a milk marketing scheme are determined under those subsections (which relate to payments to the Exchequer in respect of milk

Extension
of periods for
payments to
Exchequer
under s. 5 of
principal
Act.

A.D. 1936. — used in manufacturing milk products) shall be extended by eighteen months, and accordingly such payments shall, subject to the provisions of the said section five, be made in respect of months falling within those periods as so extended.

Extension
of periods
for Ex-
chequer
payments to
Government
of Northern
Ireland
under s. 6 of
principal
Act.

3.—(1) The power of the Minister of Agriculture and Fisheries under subsection (1) of section six of the principal Act to pay to the Government of Northern Ireland out of moneys provided by Parliament such sums, if any, as may be agreed between the Treasury and the Government of Northern Ireland with a view to securing, in the case of milk produced in Northern Ireland which has, in any month, been used in manufacturing cream or butter at premises registered under any Act of the Parliament of Northern Ireland relating to the marketing of dairy produce, that the sum per gallon payable in respect of that milk to the respective producers thereof is not less than the standard price for that month, shall include power to make such payments in respect of any month in the period beginning on the first day of April, nineteen hundred and thirty-six, and ending with the thirtieth day of September, nineteen hundred and thirty-seven.

(2) The period of twenty-four consecutive months specified in subsection (2) of section six of the principal Act as the period within which must fall the months by reference to which the sums payable to the Exchequer of the United Kingdom by the Government of Northern Ireland are determined under that subsection (which relates to the refunding of excess payments made under subsection (1) of that section) shall be extended by eighteen months, and accordingly such payments shall, subject to the provisions of that section, be made in respect of months falling within that period as so extended.

Extension
of period in
respect of
which Ex-
chequer con-
tribution
may be
made
towards
expenses
of boards.

4. The power of the Minister under subsection (1) of section eleven of the principal Act to pay to the board administering a milk marketing scheme, out of moneys provided by Parliament, sums in respect of expenses incurred by the Board in giving effect to arrangements for increasing the demand for milk, shall include power to make such payments in respect of such expenses as appear to the Minister to be attributable to any time before the first day of October, nineteen hundred and

thirty-seven; and the amount which may be expended under the said subsection shall be increased by five hundred thousand pounds. A.D. 1936. —

5.—(1) The amendments specified in the second column of Part I of the Schedule to this Act, which relate to matters of minor detail, shall be made in the provisions of the principal Act specified in the first column of that Part of that Schedule. Minor and consequential amendments.

(2) The amendments specified in the second column of Part II of the Schedule to this Act, being amendments consequential on the foregoing provisions of this Act, shall be made in the provisions of the principal Act specified in the first column of that Part of that Schedule.

6. This Act may be cited as the Milk (Extension of Temporary Provisions) Act, 1936, and shall be construed as one with the principal Act; and this Act and the principal Act may be cited together as the Milk Acts, 1934 and 1936. Short title, construction and extent.

A.D. 1936.

SCHEDULE.

Section 5.

MINOR AND CONSEQUENTIAL AMENDMENTS.

PART I.

MINOR AMENDMENTS.

Provisions to be
amended.

Amendments.

Section two - In subsection (2), for the words from " the milk " to the end of the subsection, there shall be substituted the words following :—

" during that month the greater part of the milk sold wholesale in Great Britain for use in manufacturing that milk product has been bought."

After subsection (3) there shall be added the following subsection :—

" (4) Where the Minister is satisfied that the net sum per gallon for which milk is sold wholesale in Great Britain for use in manufacturing any milk product differs in respect of milk sold for use in manufacturing different descriptions of that milk product, he may by order direct that, in relation to that milk product, the foregoing provisions of this section shall have effect as if for references to the milk product there were therein substituted references to those descriptions of the milk product; and the Minister may by order vary or revoke any previous order made by him under this subsection."

Section five - In subsection (3), for paragraphs (a) and (b) there shall be substituted the following paragraphs :—

" (a) to pay any sum in respect of milk used in manufacturing butter or cheese, in excess of the sums which have become payable under the foregoing provisions of this Act to that board in respect of milk used in manufacturing butter or cheese; or

Provisions to be
amended.

Amendments.

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Section five
—cont.

(b) to pay any sum in respect of milk used in manufacturing cream, milk powder or condensed milk, in excess of the sums which have become payable under the foregoing provisions of this Act to that board in respect of milk used in manufacturing cream, milk powder or condensed milk."

PART II.

CONSEQUENTIAL AMENDMENTS.

Sections one,
two and
three.

In subsection (1) of each of those sections for the words "twenty-four consecutive months falling between the end of March, nineteen hundred and thirty-four, and the beginning of April, nineteen hundred and thirty-six" there shall be substituted the words "forty-two consecutive months falling between the end of March, nineteen hundred and thirty-four, and the beginning of October, nineteen hundred and thirty-seven".

Section four -

In subsection (2), in paragraph (b) thereof, for the words "April, nineteen hundred and thirty-eight" there shall be substituted the words "October, nineteen hundred and thirty-nine".

Section five -

In each of subsections (1) and (2), for the words "twenty-four consecutive months falling between the end of March, nineteen hundred and thirty-six, and the beginning of April, nineteen hundred and thirty-eight" there shall be substituted the words "forty-two consecutive months falling between the end of March, nineteen hundred and thirty-six, and the beginning of October, nineteen hundred and thirty-nine".

Section six -

In subsection (1), for the word "year", wherever that word occurs, there shall be substituted the word "period"; in paragraph (a) thereof, after the words "nineteen hundred and thirty-four" there shall be inserted the words "and ending with the thirty-first day of March, nineteen hundred and thirty-five"; in paragraph (b) thereof, after the words "nineteen hundred and thirty-five" there shall be inserted

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amended.

Amendments.

Section six
—cont.

the words “and ending with the thirtieth day of September, nineteen hundred and thirty-seven”;

In subsection (2) for the words “twenty-four consecutive months falling between the end of March, nineteen hundred and thirty-six and the beginning of April, nineteen hundred and thirty-eight” there shall be substituted the words “forty-two consecutive months falling between the end of March, nineteen hundred and thirty-six and the beginning of October, nineteen hundred and thirty-nine”.

Section seven -

In subsection (2), for the words “twenty-four consecutive months falling between the end of March, nineteen hundred and thirty-six, and the beginning of April, nineteen hundred and thirty-eight” there shall be substituted the words “forty-two consecutive months falling between the end of March, nineteen hundred and thirty-six, and the beginning of October, nineteen hundred and thirty-nine”.

In subsection (4), for the words “March, nineteen hundred and thirty-eight” there shall be substituted the words “September, nineteen hundred and thirty-nine”.

Section eight -

In subsection (2), for the words “April, nineteen hundred and thirty-eight” there shall be substituted the words “October, nineteen hundred and thirty-nine”.

Section eleven -

In subsection (1), in paragraph (a) of the proviso thereto, for the words from “the period” to the end of that paragraph, there shall be substituted the words “September, nineteen hundred and thirty-seven”; in paragraph (b) of the said proviso, after the word “million” there shall be inserted the words “five hundred thousand”.

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